

07 NCAC 02H .0303 is proposed for amendment as follows:

07 NCAC 02H .0303 APPLICATION

~~All users must complete an official application form and be certified in accordance with 36 C.F.R. 701.10 as eligible and meeting requirements established by the Library of Congress.~~

(a) To obtain services under Rule .0302 of this Section, users shall submit an application to the Library, 1841 Capital Boulevard, Raleigh, North Carolina 27635. Applications shall be submitted on a form prepared by the Library and include the user's:

(1) name, address and telephone number;

(2) county of residence;

(3) date of birth;

(4) gender;

(5) name, address, and telephone number of a friend or relative;

(6) status as an honorably discharged veteran of the Armed Forces of the United States;

(7) qualifying disability including:

(A) blindness;

(B) visual handicap;

(C) physical handicap;

(D) reading disability; or

(E) deaf and blind;

(8) degree of hearing impairment of either:

(A) moderate – some difficulty understanding speech; or

(B) profound – cannot hear or understand speech;

(9) preferred items such as: books recorded on digital cartridge with digital player; braille books; large print books; or music;

(10) necessity for special attachments such as: headphones; amplifier; breath switch; or remote control;

(11) language preference;

(12) service preference such as:

(A) requested materials only; or

(B) materials requested by the Library based upon selected reading preferences;

(13) reading preferences such as: Fiction, Non-Fiction, Adventure, Aging/Retirement, Animal Stories, Arts, Best Sellers, Biography, Black Literature, Technology/Computers, Classics, Cooking/Homemaking, Current Events, Disabilities, Family Stories, Fantasy, Folklore/Fairy Tales, General Fiction, Health/Medicine, Historical Fiction, History-US, History-World, Humor, Marriage/Family, Mysteries, Nature, North Carolina, Occult/Horror, Plays, Poetry, Politics/Government, Psychology, Religious Inspiration, Religion (scholarly), Romance, Science,

1 Science Fiction, Sea Stories, Short Stories, Sports, Spy Stories, Business, Travel, War Stories, or
2 Western; and

3 (14) reading restrictions such as: strong language, violence, or explicit descriptions of sex.

4 (b) Applications shall be certified by a competent authority and shall include the competent authority's name, address
5 and telephone number, title and occupation, and an original signature. In cases of blindness, visual impairment,
6 physical handicap, or reading disability from organic dysfunction, a competent authority shall be defined as provided
7 in 36 CFR 701.6(b)(2)(i), which is incorporated by reference, including subsequent amendments and editions, and
8 available for free at [https://www.ecfr.gov/cgi-bin/text-idx?SID=56ff245ec016601b46b55f2331b4b7ee&mc=true&](https://www.ecfr.gov/cgi-bin/text-idx?SID=56ff245ec016601b46b55f2331b4b7ee&mc=true&node=se36.3.701_16&gn=di8)
9 [node=se36.3.701_16&gn=di8](https://www.ecfr.gov/cgi-bin/text-idx?SID=56ff245ec016601b46b55f2331b4b7ee&mc=true&node=se36.3.701_16&gn=di8). A competent authority shall not be relatives of the applicant, even if otherwise
10 qualified.

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12 *History Note: Authority G.S. 125-2; ~~143B-10;~~*

13 *Eff. April 1, 2011.*